

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL MISCELLANEOUS JURISDICTION)

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

Criminal Miscellaneous Case No.54007 of 2022

Kazi Bappa Ahmad @ Sazzad@ Tareque Bin Zia @
Mollah Akter Md. Monsur

.... Accused-Petitioner

-Versus-

The State

.... Opposite Party

Mr. Monoj Mallik, Advocate

.... For the petitioner.

Mr. Sujit Chatterjee, D.A.G. with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Heard and Judgment on 20.02.2024

S M Kuddus Zaman, J:

On an application under section 498 of the Code of Criminal Procedure this Rule was issued calling upon the opposite party to show cause as to why the accused petitioner should not be enlarged on bail in G.R. Case No.30 of 2022 corresponding to Airport Police Station Case No.30 dated 27.01.2022 under Section 6(2) of C/6(2) of D/8/9/10/12/13 of Anti-Terrorism Act, 2009 (Amendment-2013, now pending in

the Court of learned Chief Metropolitan Magistrate, Sylhet and/or pass such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that accused petitioner Kazi Bappi @ Sazzad @ Tareque Bin Zia @ Mollah Akter Md. Monsur was arrested by RAB on 28.01.2022 on the basis of secret information as to his involvement with proscribe militant organization Ansaral Al Islam and from his mobile telephone numerous posts were found propagating the murderous edology of above proscribe militant organization.

Mr. Monoj Mallick, learned Advocate for the petitioner submits that the petitioner is a local businessman. He was arrested by RAB suspicion. But no incriminating material was recovered from his possession and he is in custody since 28.01.2022 but the investigation of the case has not yet been concluded.

Mr. Sujit Chatterjee, learned Deputy Attorney General for the State raises objection against granting of bail to the petitioner at this point of time.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

It turns out from the record that the petitioner was arrested on 28.01.2022 and from his possession no incriminating material excepting his mobile telephone was seized. He is in custody in connection of this case since

28.01.2022. But the investigation of this case has not yet been concluded.

On consideration of above materials on record we find substance in this petition and the Rule issued in this connection deserve to be made absolute.

In the result, the Rule is made absolute.

Let accused-petitioner Kazi Bappa Ahmad @ Sazzad @ Tareque Bin Zia @ Mollah Akter Md. Monsur, son of late Kazi Shawkaatual be enlarged on bail subject to furnishing bail bond to the satisfaction of the learned Chief Metropolitan Magistrate, Sylhet.

The learned Judge of the Court below is at liberty to cancel the bail of the accused-petitioner if he misuses the privilege of bail in any manner whatsoever.

Communicate this judgment and order to the Court concerned at once.

Md Ali Reza, J:

I agree.

MD. MASUDUR RAHMAN
BENCH OFFICER